

25CV03639 Monzer Samaan vs General Motors LLC

County: santa-barbara

Division: Civil Law & Motion

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Hearing date: 2026-08-17

Motion: CMC; Motion: Attorney Fees

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Tentative Ruling: Monzer Samaan vs General Motors LLC

Case Number

25CV03639

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 08/17/2026 - 10:00

Nature of Proceedings

CMC; Motion: Attorney Fees

Tentative Ruling

Monzer Samaan v. General Motors LLC

Case No. 25CV03639

Hearing Date: August 17, 2026

HEARING: Plaintiff's Motion for Attorneys' Fees

ATTORNEYS: For Plaintiff Monzer Samaan: Benjamin Dishchyan, Kronos Law, P.C.

For Defendant General Motors LLC: Mary Arens McBride, Ryan Kay, Sandra Habib, Erskine Law Group, APC

TENTATIVE RULING:

For the reasons stated herein, the motion of plaintiff for attorney's fees is granted, in part. The court awards plaintiff attorney's fees in the amount of \$13,860. Except as herein granted, the motion is otherwise denied.

Background:

Plaintiff Monzer Samaan (Plaintiff) alleges in this case that on October 18, 2020, they purchased a 2021 Chevrolet Tahoe C1500 LT, for which General Motors LLC (GM) issued a written warranty. The vehicle was delivered to Plaintiff with electrical, engine, structural, suspension, and transmission system defects. Though Plaintiff presented the vehicle for repairs, GM was unable to conform the vehicle to warranty.

Plaintiff filed their complaint against GM on June 10, 2025, asserting three causes of action: (1) violation of the Song-Beverly Consumer Warranty Act – breach of express warranty, (2) violation of the Song-Beverly Consumer Warranty Act – breach of implied warranty, and (3) violation of the Song-Beverly Consumer Warranty Act section 1793.2.

On July 24, 2025, GM filed an answer to the complaint, generally denying its allegations and asserting twenty-five affirmative defenses.

On April 21, 2026, Plaintiff filed a motion for an order awarding to Plaintiff attorney's fees, costs, and expenses in the amount of \$22,680, on the grounds that, pursuant to the terms of a settlement between the parties under the Song-Beverly Consumer Warranty Act, codified as Civil Code section 1790 et seq., they are the prevailing party in this case.

GM has filed an opposition to the motion.

Analysis:

Section 1794 of the Song-Beverly Consumer Warranty Act provides: "If a buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).)

The motion is supported by a declaration of Plaintiff's counsel, Benjamin Dishchyan (attorney Dishchyan), who states that on January 21, 2026, Plaintiff executed an agreement to resolve this action pursuant to which GM agreed that Plaintiff is the prevailing party and could seek attorney's fees and costs by the present motion. (Dishchyan Dec., ¶ 3.) After Plaintiff's initial offer to resolve the attorney's fee issue, Plaintiff followed up with GM several times but no response was provided. (Dishchyan Dec., ¶ 4.)

Though the motion is not accompanied by a copy of the parties' settlement agreement, in support of its opposition to the motion, GM's counsel, Ryan Kay (attorney Kay) concedes that "the parties reached a settlement whereby GM agreed to pay \$70,000, plus reasonable fees and costs to be determined by motion if unresolved." (Kay Dec., ¶ 11.) Attorney Kay asserts that "[Plaintiff's] request is unreasonably excessive and should be reduced." (Kay Dec., ¶ 14.)

For all reasons discussed above, it is the court's understanding that GM does not dispute that Plaintiff is a prevailing party entitled to recover attorney's fees pursuant to Civil Code section 1794, and instead directs its opposition to the issue of

whether the attorney's fees requested in Plaintiff's motion are compensable or were reasonably incurred.

"[T]he fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.... The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. [Citation.] Such an approach anchors the trial court's analysis to an objective determination of the value of the attorney's services, ensuring that the amount awarded is not arbitrary." (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.)

"Civil Code section 1794, subdivision (d) requires the attorney fees to be based on 'actual time expended' and to have been 'reasonably incurred.'" (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 997 (Doppes).) Because "our Supreme Court has held that the lodestar adjustment method is the prevailing rule for statutory attorney fee awards to be applied in the absence of clear legislative intent to the contrary [citation], ... it is applicable to attorney fee awards under section 1794, subdivision (d)." (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 818–819 (Robertson).) "[A] prevailing party has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount." (Id. at pp. 817–818.)

"The relevant 'community' is generally based on where the services are rendered, i.e., where the court is located. [Citation.] Accordingly, the reasonable hourly rate in this case is that charged by consumer attorneys practicing in the local legal community" (Tidrick v. FCA US LLC (2025) 112 Cal.App.5th 1147, 1157.)

The hourly rate charged by attorney Dishchyan in this case is \$600. (Dishchyan Dec., ¶ 18.) Attorney Dishchyan further states that they were admitted to the State Bar of California in 2023, and spent approximately three years as a litigation law clerk and attorney at Hillstone Law before starting Kronos Law PC, of which attorney Dishchyan is the principal attorney. (Dishchyan Dec., ¶¶ 2, 15, & 16.) Attorney Dishchyan's practice is primarily focused on personal injury and "lemon" law litigation, having filed actions on behalf of consumers against a wide range of manufacturers including GM, FCA US LLC, BMW North America, Mercedes-Benz USA, Volvo Group of North America, Volvo Cars North America, Volkswagen Group of America, and Tesla Motors Inc. (Dishchyan Dec., ¶ 17.)

Based on the qualifications and experience of attorney Dishchyan, and the court's own familiarity with the relevant legal market, the court finds that hourly rate charged in this case by attorney Dishchyan is reasonable for the Santa Barbara area. (In re Tobacco Cases I (2013) 216 Cal.App.4th 570, 587-588 (Tobacco Cases) [the trial court may rely on its own experience and knowledge to determine the reasonable value of the attorney's services].)

While litigating this case, attorney Dishchyan was the sole attorney at their office working on "lemon law" matters without the assistance of any staff. (Dishchyan Dec., ¶ 19.) Attorney Dishchyan further states that, because they bore all managerial and litigation responsibilities for this case, which was taken on a contingent basis, they had a strong incentive to keep the time expended on the litigation as low as reasonably possible including as to any efforts to settle the amount of attorney's fees without bringing this motion. (Dishchyan Dec., ¶ 21.)

According to attorney Dishchyan, after this lawsuit was filed on June 10, 2025, GM offered a repurchase of the subject vehicle, with civil penalties and attorney's fees. (Dishchyan Dec., ¶ 10.) Plaintiff presented a counter offer in regard to attorney's fees and, before reaching a settlement, the parties proceeded with initial disclosures and attempted to schedule Plaintiff's deposition. (Dishchyan Dec., ¶¶ 10-11.)

Attorney Dishchyan expended 4.6 hours drafting, compiling ancillary documents, and filing the underlying lawsuit; 11.6 hours in the litigation and settlement stage of this case; and 3.5 hours to prepare the present motion. (Dishchyan Dec., ¶¶ 23, 25, 26.) Attorney Dishchyan anticipates expending an additional 3 hours to review GM's opposition to the motion, attend the hearing, and conduct tasks to close this case. (Dishchyan Dec., ¶ 26.)

Attorney Dishchyan maintained time records reflecting the hours they expended on this matter, including the work performed on behalf of Plaintiff and the amount of time spent on each activity. (Dishchyan Dec., ¶ 13.) Attached to attorney Dishchyan's

declaration is a document labeled “Monzer Samaan Attorney Hours Time Sheet” (the Time Sheet), which reflects the events that occurred during this litigation, the services performed by attorney Dishchyan in connection with those events, and the hours expended for those services. (Dishchyan Dec., ¶¶ 12, 24, & exhibit 1 [time record].)

“[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous.” (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 396 (Horsford).) The Time Sheet shows that the time expended by attorney Dishchyan in connection with this litigation at the hourly rate described above, totals 22.2 hours, of which 3.5 hours were expended to prepare the present motion. (Dishchyan Dec., ¶ exhibit 1.) There available information and evidence suggests that the Time Sheet reflects the actual time billed by attorney Dishchyan, and that the entries contained were recorded contemporaneously with the performance of the described services and audited. (Ibid. [entry dated Nov. 11, 2025].)

For all reasons discussed above, the Time Sheet, on its face, contains no clear indication that there exist any errors or inaccuracies in that record. Therefore, the Time Sheet is entitled to credence. (Horsford, supra, 132 Cal. App. 4th at p. 396.) Further, “the reasonable attorney fees incurred in preparing the motion are also recoverable.” (Doppes, supra, 174 Cal.App.4th at p. 1002.)

In their reply to GM's opposition to the motion, Plaintiff withdraws their request for time to administratively close the file. (Reply at p. 3, ll. 4-5.) Attorney Dishchyan also states in their supplemental reply declaration that, instead of the 3 hours of time they anticipated expending to review the opposition of GM, prepare a reply, and attend the hearing on the motion, counsel expended or will expend 4 hours for those tasks. (Reply at p. 3; Supplemental Dishchyan Dec., ¶ 3.)

The motion includes a request for a contingency fee enhancement or “multiplier” of 1.5 percent to calculate a fee award. In support of that request, attorney Dishchyan states that, because they accepted this case on a contingent basis, there was a strong incentive to keep the time spent on each activity as low as possible. (Dishchyan Dec., ¶ 21.) Attorney Dishchyan further asserts that, had Plaintiff lost this case, all of counsel's work would have been performed for free including in regard to associated expenses. (Dishchyan Dec., ¶ 22.)

The “lodestar figure [is] based on ... noncontingent litigation of the same type.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1133 (Ketchum), original italics.) That figure “may then be augmented or diminished by taking various relevant factors into account, including (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award.” (Robertson, supra, 144 Cal.App.4th at p. 819.) “The purpose of such adjustment is to fix a fee at the fair market value for the particular action. In effect, the court determines, retrospectively, whether the litigation involved a contingent risk or required extraordinary legal skill justifying augmentation of the unadorned lodestar in order to approximate the fair market rate for such services.” (Ketchum, supra, 24 Cal.4th at p. 1132.)

“[T]he contingent and deferred nature of the fee award in a ... case with statutory attorney fees requires that the fee be adjusted in some manner to reflect the fact that the fair market value of legal services provided on that basis is greater than the equivalent noncontingent hourly rate.” (Horsford, supra, 132 Cal.App.4th at pp. 394–395.) “[T]he statutory language of section 1794, subdivision (d), is reasonably compatible with ... use of fee multipliers.” (Robertson, supra, 144 Cal.App.4th at p. 818.)

The motion presents no information or evidence showing that attorney Dishchyan contracted to represent Plaintiff on a contingency fee basis, or what, if any, contingency fee rate was agreed upon by Plaintiff. (Bus. & Prof. Code, § 6147; Chodos v. Borman (2014) 227 Cal.App.4th 76, 101–102 [statute governing contingency fee contracts was “enacted to benefit and protect clients ... by informing them at the outset of the representation in a signed writing, inter alia, of the amount of attorney fees they will incur under ... contingency fee agreements.”].) For these reasons, the motion fails to show the contingent nature of attorney Dishchyan's representation of Plaintiff.

Even if Plaintiff could present information or evidence showing an agreed upon contingency fee agreement or rate, wholly absent from the motion is any reasoned legal or factual argument showing that this case involved novel or difficult questions of law or fact. Instead, the number of hours and services reflected in the Time Sheet and attorney Dishchyan's declaration, which also show that this case settled within six months after the filing of the complaint, did not involve significant law and motion practice, and did not proceed to trial, suggests that this case is not atypical of litigation under the Song-Beverly Consumer Warranty Act. (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 41 (*Morris*).)

The motion also fails to explain why the nature of this case precluded other employment by attorney Dishchyan. For these and all further reasons discussed above, the court will deny the request for a fee enhancement or multiplier.

"In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (*Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564 (*Premier*).)

In support of GM's opposition to Plaintiff's motion, attorney Kay asserts that this is a "straightforward lemon law" case that moved forward with minimal activity, and without depositions or expert involvement, vehicle inspections, dispositive motions, mediation, or trial preparation; that Plaintiff did not serve any initial disclosures or file any motions to compel; and that the parties instead focused on early resolution. (Kay Dec., ¶¶ 9, 10, & 13.) Attorney Kay states that the settlement was reached on or about October 23, 2025, with Plaintiff executing a release on January 21, 2026. (Kay Dec., ¶ 11.) For these reasons, attorney Kay asserts, the fee request is unreasonably excessive and should be reduced. (Kay Dec., ¶ 14.)

GM also contends, with specific references to entries appearing in the Time Sheet, that certain pre-litigation and other tasks described in the motion reflect routine, noncompensable, preliminary case assessment and administrative or clerical work. GM further contends that the fee request is inflated based on the number of documents produced in this case and the use of generic pleadings and other documents by Plaintiff; that time to review GM's motion for compliance should be stricken because that motion was necessitated by Plaintiff's inaction and failure to provide a complete document production; and that the anticipated fees are speculative and do not reflect actual time expended as required under Civil Code section 1794.

Though the court finds that the hourly rate charged by Plaintiff's counsel is "generally commensurate with other consumer law attorneys with the same level of experience and skill" (*Morris*, supra, 41 Cal.App.5th at p. 41), the Time Sheet includes hours expended by attorney Dishchyan to open the case file, to file various documents including the complaint and case management statements, to sign a protective order, and to reschedule depositions, among other ostensibly administrative tasks. (Dishchyan Dec., exhibit 1 [entries dated Apr. 3, June 10, Aug. 24, & Oct. 3, 6, 16, & 18].) Apart from generally asserting an unavailability of staff, the motion fails to explain why those hours are compensable or reasonable including as to any tasks which, on their face, could have been performed by non-attorney staff or at rates much lower than those charged by attorney Dishchyan. (*569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 438–439.)

Apart from the matters further discussed above, to the extent the Time Sheet reflects the use of "generic" pleadings or templates (and the court does not find that it does), this would suggest to the court that the time expended by Plaintiff's counsel was efficient, as opposed to the time that may otherwise have been expended to draft entirely new documents. In addition, the time expended for Plaintiff to review the October 1, 2025, motion of GM for an order requiring Plaintiff to provide documents and disclosures pursuant to Code of Civil Procedure section 871.26, which Plaintiff did not oppose and which the court denied on January 12, 2026, totals 1.5 hours. (Dishchyan Dec., exhibit 1 [entry dated Oct. 1, 2025].) The court finds those hours to be reasonable under the circumstances present here.

Furthermore, though GM generally asserts that a reasonable hourly rate for an attorney practicing lemon law for two years should be \$400, the arguments advanced by GM in this regard are conclusory, and not supported by any evidence or information showing why a lower hourly rate is reasonable. Therefore, GM has failed to meet its burden as to that issue. (*Premier*, supra, 163 Cal.App.4th at p. 564.)

“The plain wording of [Civil Code section 1794, subdivision (d),] requires the trial court to base the fee award upon actual time expended on the case, as long as such fees are reasonably incurred—both from the standpoint of time spent and the amount charged.” (Robertson, *supra*, 144 Cal.App.4th at p. 817, original italics.) Under the totality of the circumstances present here, the court finds that that an award of attorney's fees in the amount of \$13,860, which represents 23.1 hours of attorney Dishchyan's time multiplied by their hourly rate of \$600, is reasonable based on the nature of this litigation, Plaintiff's success, and counsel's experience in the type of work demanded. (Tobacco Cases, *supra*, 216 Cal.App.4th at p. 587.) This amount reflects a deduction for noncompensable, unreasonable, or duplicative fees. For these and all further reasons discussed above, the court will grant the motion, in part, and award to Plaintiff attorney's fees in the amount of \$13,860.

Judges

Judge Colleen Sterne

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